

Senate File 494

S-3043

1 Amend Senate File 494 as follows:

2 1. Page 1, after line 11 by inserting:

3 <3. "*Marketing*" means to offer for sale or sell, including
4 by transfer, exchange, or barter, conditional or otherwise, in
5 any manner by any means whatsoever, for consideration.>

6 2. Page 1, line 12, by striking <3.> and inserting <4.>

7 3. Page 1, line 18, by striking <4.> and inserting <5.>

8 4. Page 1, by striking lines 21 through 24.

9 5. Page 2, after line 4 by inserting:

10 <2. As a general principle, each individual has a natural,
11 inherent, and unalienable right to market wholesome garden food
12 harvested from that individual's residential garden, so long as
13 the individual fairly represents that food to purchasers.>

14 7. Page 2, line 5, by striking <2.> and inserting <3.>

15 6. Page 2, line 15, by striking <residential property> and
16 inserting <property>

17 8. Page 2, line 18, by striking <Applicability.> and
18 inserting <Residential garden regulation — applicability.>

19 9. Page 2, line 19, by striking <This chapter> and inserting
20 <Section 137H.4>

21 10. Page 2, by striking line 26.

22 11. Page 2, line 27, by striking <4.> and inserting <3.>

23 12. Page 2, line 32, by striking <5.> and inserting <4.>

24 13. Page 2, line 34, by striking <6.> and inserting <5.>

25 14. Page 2, line 35, by striking <7.> and inserting <6.>

26 15. Page 3, line 3, by striking <8.> and inserting <7.>

27 16. Page 3, line 5, by striking <9.> and inserting <8.>

28 17. Page 3, line 10, by striking <10.> and inserting <9.>

29 18. Page 3, line 13, by striking <11.> and inserting <10.>

30 19. Page 3, after line 17 by inserting:

31 <Sec. ____ NEW SECTION. 137H.6 Regulation of selling food
32 harvested from residential garden — prohibition.

33 A state agency or local government shall not adopt or
34 continue in effect any regulation, including in the form
35 of a rule, ordinance, or resolution, that prohibits an

1 individual from marketing food harvested from the individual's
2 residential garden located on property owned or leased by that
3 individual. A regulation in violation of this section is void
4 and unenforceable.

5 Sec. _____. NEW SECTION. 137H.7 **Selling food harvested from**
6 **residential garden — applicability.**

7 Section 137H.6 does not apply to any of the following:

8 1. A plant that is subject to regulation under section
9 137H.5.

10 2. A public place where food is marketed by vendors,
11 including a farmers market.

12 3. The use of property owned or leased by a person other
13 than the individual marketing the garden food.

14 4. An act that constitutes a public or private nuisance,
15 trespass, or other public offense.

16 5. The marketing of food to children or a person adjudged
17 incompetent by a court of law.

18 6. Garden food that is unwholesome or presents a clear
19 danger to the public health.

20 7. Garden food that is processed by altering its form or
21 identity.

22 8. Garden food that is falsely advertised.

23 9. A regulation that does not target the marketing of food
24 harvested from a residential garden, even though the regulation
25 may impact upon such marketing.>

26 20. Page 3, line 24, after <137H.> by inserting <A county
27 shall not adopt or continue in effect any regulation, including
28 in the form of an ordinance or resolution, that prohibits that
29 individual from marketing food harvested from the individual's
30 residential garden as provided in that chapter.>

31 21. Page 3, line 31, after <137H.> by inserting <A city
32 shall not adopt or continue in effect any regulation, including
33 in the form of an ordinance or resolution, that prohibits that
34 individual from marketing food harvested from the individual's
35 residential garden as provided in that chapter.>

1 22. By renumbering as necessary.

CHERIELYNN WESTRICH